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Tipton v. BJ's Restaurants, Inc., et al., Case No.

24PSCV02261

ORDER ON MOTIONS TO COMPEL

FURTHER RESPONSES

1. Plaintiff

Tipton's Motion to Compel Further Responses to Requests for Production is GRANTED as to RFP Nos. 64-66, 72-75, 77 and DENIED as to RFP Nos. 63, 80-82, 71, 76 pursuant to Code of Civil Procedure section 2031.310. Defendant is directed to provide further responses as to RFP Nos. 64-66, 72-75, and 77 within 30 days of the notice of ruling and is directed to provide a privilege log for any documents withheld based on privilege. The parties are directed to submit a stipulation for entry of a protective order within 14 days of the notice of ruling. Plaintiff's and Defendant's respective requests for sanctions are DENIED.

2. Plaintiff

Tipton's Motion to Compel Further Responses to Special Interrogatories is GRANTED as to SI Nos. 61-63, 65 and DENIED as to SI Nos. 49, 60, 68-71 pursuant to Code of Civil Procedure section 2031.300. Defendant is directed to provide further responses as to SI Nos. 61-63 and 65 within 30 days of the notice of ruling. Plaintiff's and Defendant's respective requests for sanctions are DENIED.

Background

On March 11, 2023, Plaintiff Cynthia

Tipton ("Plaintiff") allegedly slipped and fell on liquid while patronizing Defendant BJ's Restaurants, Inc.'s restaurant. On March 12, 2024, Plaintiff filed a complaint against BJ's Restaurants, Inc. ("Defendant") and JCC California Properties LLC alleging negligence. JCC California Properties LLC was dismissed from the case on September 16, 2024.

Pending before the Court are Plaintiff's motions to compel further responses to requests for production and special interrogatories.

1. Motion

to Compel Further Responses to Requests for Production of Documents

Legal
Standard

Pursuant to Code of Civil Procedure sections 2031.310, subdivision (a), parties may move for a further response to interrogatories where an answer to the requests are evasive or incomplete or where an objection is without merit or too general. (Code of Civ. Proc., §2031.310, subd. (a).) The moving party is entitled to sanctions if it prevails, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code of Civ. Proc., §2031.310, subd. (c).)

Where a party is seeking to compel further responses to requests for document production, the burden is on the moving party to show both relevance to the subject matter and specific facts justifying discovery. (Code of Civ. Proc. §2031.310, subd. (b)(1); *Kirkland v. Supr. Ct.* (2002) 95 Cal.App.4th 92, 98 ("Once good cause was shown, the burden shifted to Kirkland to justify his objection"); *Glenfed Develop. Corp. v. Supr. Ct.* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is established by the moving party, the burden then shifts to the responding party to justify any objections made to document disclosure. (*Hartbrodt v. Burke* (1996) 42 Cal.App.4th 168, 172-174.) Section 2031.310 allows a party to file a motion compelling further answers to document requests if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. The motion shall be accompanied with a meet and confer declaration.

(Code of Civ. Proc., § 2031.310, subd. (b).)

Discussion

Plaintiff moves to compel

further responses to Requests for Production Nos. 63-66, 71-77, and 80-82. The Court addresses each disputed document request in turn.

RFP No. 63—DENY.

The Court determines that Defendant's objection that the RFP is overbroad in scope is well taken. The RFP asks for "all documents identifying" any third parties and/or contractors Defendant BJ's hired to clean the subject location within one year of the incident. This request is overbroad and vague, and Plaintiff fails to establish good cause for the requested documents.

While Plaintiff argues

maintenance records may be used to establish whether the defendant exercised reasonable care in maintaining the property and whether the Defendant failed to inspect the premises within a reasonable time before the accident, relying on *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200 and *Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, RFP No. 63 is overbroad for that stated purpose and would not limit production to maintenance records.

RFP Nos. 64-66—GRANT.

Unlike RFP No. 63, these RFPs are limited to specific categories of documents, including contracts with third parties and/or contractors hired by defendant to clean the Subject Location within one year of the incident, contracts with third parties and/or contractors hired by Defendant to apply sealant or coating on the flooring, and any policies/procedures disseminated to third parties and/or contractors who were hired to clean the Subject Location. The Court determines that the RFPs are not vague, overbroad or irrelevant, and that any concerns regarding disclosure of confidential business information can be addressed with a protective order.

As to Defendant's privacy

concerns, Defendant fails to establish that there are any privacy interests of third persons that would not be sufficiently protected by a protective order. "In *Hill*, we established a framework for evaluating potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given

circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations." (Williams v. Superior Court (2017) 3 Cal.5th 531, 552 (citing Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 35).) Defendant does not argue or reference its privacy objections in its opposition brief or separate statement. Defendant does not apply the Hill framework to its privacy objections.

As to overbreadth, Defendant argues the incident was a very limited slip and fall incident that does not justify the requested discovery. Defendant also argues all relevant information to the incident has been obtained through other channels of discovery, including deposition of two percipient witnesses. However, Plaintiff is entitled to obtain discovery through all channels and the mere fact that she has already obtained information from other channels of discovery is not grounds to object to the RFPs. There is no showing that the discovery is so duplicative that it is oppressive or abusive.

Finally, as to relevance, Defendant argues the requested information is irrelevant to constructive notice on the day of the incident. However, Plaintiff is entitled to request discovery regarding the condition of the floors at Subject Location, including what sealant or other products were used on the floors. The condition and maintenance of the floor is relevant to Defendant's alleged negligence. While Defendant argues the incident was the result of rain that had accumulated and that it had already begun to take measures in response to the weather, Plaintiff is not required to accept Defendant's version of events and is entitled to discover whether Defendant's maintenance of the floor contributed to the condition that caused her to fall. The requests are also reasonably limited in time—to one year before the incident.

RFP Nos. 71, 76—DENY, RFP Nos.

72-75—GRANT. In RFP No. 71, Plaintiff seeks

all documents referring or relating to any slip and fall incident that occurred at the Subject Location within 5 years of the incident. Plaintiff argues prior similar incidents are relevant to the issue of Defendant's notice of the

dangerous condition. "Before evidence of previous injuries may be admitted on the issue of whether or not the condition as it existed was in fact a dangerous one, it must first be shown that the conditions under which the alleged previous accidents occurred were the same or substantially similar to the one in question. . . . The strictness of this requirement of similarity of conditions is much relaxed, however, when the purpose of the offered evidence is to show notice, since all that is required here is that the previous injury should be such as to attract the defendant's attention to the dangerous situation which resulted in the litigated accident." (Laird v. T.W. Mather, Inc. (1958) 51 Cal.2d 210, 220.)

Defendant argues that under Laird, Plaintiff fails to limit discovery to substantially similar slip and fall accidents. However, Laird addresses the admissibility of evidence. The scope of discovery is broader than admissibility at trial. (Jessen v. Harford Casualty Ins. Co. (2003) 111 Cal.App.4th 698, 711 (scope of discovery "is broader than the issues and is not limited to admissible evidence").)

Even so, the Court determines that Plaintiff's RFP No. 71 is overbroad because it seeks documents referring or relating to any slip and fall that occurred at the Subject Location, regardless of cause and regardless of where the accident occurred at the Subject Location. RFP Nos. 72-75 are narrower in scope and limit production to slip and falls that occurred near the dining room and/or adjoining entry way leading into the dining room, occurred on any wood flooring surface, occurred due to the alleged accumulation of a liquid substance on the floor, or occurred due to the alleged accumulation of a foreign substance on the floor.

Like RFP No. 71, RFP No. 76 is also overbroad. RFP No. 76 seeks all documents referring or relating to any slip and fall incident at any BJ's Restaurants, Inc. establishments in California. Plaintiff fails to establish that slip and fall incidents at Defendant's other establishments are relevant to Plaintiff's slip and fall. RFP No. 76 also fails to limit responsive documents to similar slip and fall incidents.

Defendant argues the responsive information will contain confidential proprietary information and privileged information. However, concerns about privacy and confidential information can

be adequately addressed by a protective order. The parties are directed to meet and confer regarding a proposed protective order and file a stipulation for a protective order within 14 days of the notice of ruling. To the extent that responsive documents are privileged, Defendant must produce a privilege log to support any claim of privilege.

RFP No. 77—GRANT.

RFP No. 77 seeks documents referring or relating to any deep cleaning of the flooring at the Subject Location within one year of the incident. Plaintiff establishes relevance because maintenance of the floor within the year could have affected the condition of the floor on the day of the incident. For the reasons stated in connection with RFP Nos. 64-66 and 72-75, Defendant's other objections are overruled. Defendant fails to substantiate the privacy objections and failed to submit any privilege log in support of Defendant's privilege objection.

RFP Nos. 80-82—DENY.

RFP Nos. 80-82 requests documents identifying the specific materials used to construct the wooden, tile and slate floors at the subject location. Plaintiff fails to establish how these RFPs seek information relevant to her claims. Plaintiff slipped at a specific area of the Subject Location. Plaintiff fails to explain how discovery into the specific type of materials used to construct the floors in any area other than the area where she slipped is relevant.

Sanctions

Plaintiff's and Defendant's respective requests for sanctions are denied, inasmuch as neither party fully prevailed.

2. Motion to Compel Further Responses to Special Interrogatories

Legal Standard

On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

- (1) An answer to a particular interrogatory is evasive or incomplete.
- (2) An exercise of the option to

produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.
(Code of Civ. Proc., §2030.300, subd. (a).)

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories and RFAs. (Coy v. Sup.Ct. (Wolcher) (1962) 58 Cal.2d 210, 220–221; Fairmont Ins. Co. v. Sup.Ct. (Stendell) (2000) 22 Cal.4th 245, 255.)

Discussion

Plaintiff moves to compel further responses to Special Interrogatories 49, 60-63, 65, 68, 69, 70, 71, 76. The Court addresses each disputed special interrogatory in turn.

SI No. 49—DENY.

SI 49 asks Defendant to identify any individual, third party and/or independent contractor who applied any cleaning solution to the wooden floor of the Subject Area within 24 hours prior to the incident. SI No. 49 is duplicative of SI No. 10, which asked Defendant to identify each and every person responsible for maintaining the subject area on the day of the incident.

SI Nos. 60-63—DENY as to SI No. 60 and GRANT as to SI Nos. 61-63. These interrogatories correspond to RFP Nos. 71, 72, 74, 75, in that they ask Defendant to “identify” slip and fall incidents. SI No. 60 is overbroad because it is not limited to substantially similar incidents or narrowed in any way to particular types of slip and fall incidents. SI Nos. 61, 62, and 63 are limited in scope to slip and fall incidents in certain areas or involving liquids or foreign substances.

SI No. 65—GRANT.

The SI is not objectionable merely because it seeks information provided during the deposition testimony of Kreuz and Steward. Plaintiff is entitled to obtain information through multiple channels of discovery. The

fact that Kreuz and Steward may have provided responsive testimony to SI No. 65 does not establish that the interrogatory is oppressive or burdensome. Merely being duplicative is not grounds to deny discovery. If the duplication becomes oppressive or burdensome, that would be grounds to deny the request for further response. SI No. 65 asks when the last time a corporate officer or representative of Defendant conducted a floor inspection at the subject location prior to the incident. This is directly relevant to Plaintiff's claims because it relates to Defendant's maintenance of the floor.

SI Nos. 68-71—DENY.

These SIs ask Defendant to identify the specific material used to construct wooden, tile, slate and all flooring surfaces at the Subject Location. These SIs correspond to RFP Nos. 80-82. In addition, SI No. 71 asks Defendant to identify the specific materials used to construct "all flooring surfaces with the Subject Location." As with RFP Nos. 80-82, the specific materials used to construct any flooring surface other than the floor where Plaintiff fell is not relevant, even under the broad definition of relevance set forth under Code of Civil Procedure section 2017.010.

Sanctions

Plaintiff's and Defendant's respective requests for sanctions are denied, inasmuch as neither party fully prevailed.